

Court No. - 39

Case :- WRIT - C No. - 23870 of 2022

Petitioner :- Mukesh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Abhishek Gupta

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Mrs. Jyotsna Sharma, J.

Sri Abhishek Srivastava learned counsel for the respondent department prays for and is granted ten days time to seek instructions to the assertion of the petitioner that before issuance of recovery citation dated 07.12.2019, no opportunity of hearing whatsoever has been granted to the petitioner.

Put up on 05.09.2022 as fresh.

Order Date :- 23.8.2022

Harshita

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Heard learned counsel for the parties.

Sri Abhishek Gupta, learned counsel for the petitioner at the very outset submits that as per instruction received by him, the provisional assessment notice was served upon the petitioner and he has filed objection but the final assessment order has not been served before issuance of the recovery certificate. Learned counsel for the petitioner however submits that the recovery citation has been issued without passing of final assessment order.

Be that as it may, on the basis of the facts brought on record, present petition is disposed of with direction that the petitioner herein is permitted to file objection to the provisional assessment notice in accordance with paragraph-6.8 of the Electricity Supply Code, 2005 within a period of three weeks from today alongwith copy of this order.

After such objections are filed, the Executive Engineer, Electricity Distribution, Division-Greater Noida, Gautambudh Nagar-respondent no.3 shall be under obligation to take the expeditious decision dealing with all points of objection raised by the petitioner preferably within a period of six weeks from the date of filing of the objections.

Final assessment notice/order shall have to be served upon the petitioner calling him to pay the dues.

In case the petitioner is aggrieved by the final assessment order, it is open for the petitioner to file appeal under Section 127 of the Electricity Act, 2003.

In view of the above, the recovery citation and the final assessment order which has been passed at the previous point of time shall not be pressed into service.

With the aforesaid observation and direction, the petition is ***disposed of***.

Order Date :- 9.9.2022/Deepika